

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD. ,

RESPONDENT.

JOINT MOTION FOR EXTENSION OF TIME

Complainant, Samsung Electronics America, Inc. (“SEA”), and Respondent, HMM Co., Ltd. (“HMM”) (each a “Party” and collectively the “Parties”), through their undersigned counsel, respectfully submit this Joint Motion for Extension of Time and proposed revised procedural schedule (“Joint Motion”). The Parties submit this Motion ever mindful that a government shutdown hangs over Washington, D.C., and the work of the Federal Maritime Commission, such that if the Parties do not submit this Motion now, it will impede the Parties ability to work together and plan accordingly for the handling of this significant FMC matter in the following six weeks, when completion of the discovery phase is currently scheduled to end on November 14, 2025 (*see* Amended Scheduling Order, Dkt. 34).

The Parties respectfully seek an Order extending the discovery deadline by approximately 143 days, from November 14, 2025, to March 23, 2026, to allow the Parties to complete discovery, accommodate separate timeframes for fact and expert witness depositions, and resetting the subsequent case deadlines within the Presiding Officer's Amended Scheduling Order.

This Joint Motion is filed in compliance with 46 C.F.R. § 502.102, which allows motions for enlargement of time to "be granted upon a showing of good cause" if "received at least seven (7) days before the scheduled filing date." The Parties respectfully submit this Joint Motion after having met and conferred on September 24, 2025, and with subsequent emails and work, as required by 46 C.F.R. § 502.71. The Parties respectfully submit that good cause exists for granting the requested enlargement of time.

A. The Scope of Document Production is Substantial and Requires Careful Analysis

On September 5, 2025, pursuant to the Amended Scheduling Order, the Parties submitted a Joint Status Report outlining their discovery progress, including the production and review of documents as well as their preparations for depositions. SEA submitted that it substantially completed its document production on July 9, 2025, but would use the additional time to further review for responsive documents. As of July 9, 2025, SEA had produced 553,876 documents, consisting of 2,872,885 pages. SEA made its final document production of 53,704 documents on September 12, 2025, bringing the total documents produced by SEA to 607,580 and a total of 3,222,305 pages. HMM disclosed in the Joint Status Report that it had produced 494,132 pages at that time, but anticipated making another, sizeable production before the September 12th deadline. HMM subsequently made its final document production of 24,462 documents on September 10, 2025, and 3 documents on September 11, 2025. HMM's total production to date consists of 87,465 documents, for a total of 678,621 pages.

The Parties address the scope of documents because with claims over a period of three years, and over 96,000 charges at issue, extraordinary efforts were required in order to complete the production of documents by the deadlines imposed in the Amended Scheduling Order. The efforts to ensure collection and production of documents domestically, and for HMM, internationally, as well, required lawyers and eDiscovery professionals to work together at a breakneck pace to meet the deadlines. But the collection and production of documents does not end the process. The Parties respectfully submit that the existing schedule does not provide enough time to review the documents and materials that have been produced and prepare for depositions and initial work with experts. In addition, it is the responsibility of the Parties to find the relevant documents in the productions, including their own, to present to the Presiding Officer when determining the allegations concerning the Shipping Act. In connection with this work, the Parties are also able to assess if information is missing from the productions, or if there are relevancy concerns in connection with objections to discovery, to attempt to resolve those concerns.

The Parties have been working on these issues, as addressed below, but mindful that with millions of pages of documents produced by end of the September 12, 2025, deadline, turning right to the taking of depositions poses a real challenge for which the Parties seek relief and the Presiding Officer's indulgence. Numerous documents are entirely or partially in Korean. Because of this, the Parties seek a document assessment period in preparation for depositions. This will allow the parties to address the issues raised in this subsection, along with seeking to resolve discussions concerning the scope of information produced, as addressed below.

B. The Parties Are Working Together Towards Addressing Discovery Queries

As stated in the Parties' Joint Status Report, the Parties have been working diligently to address the documents and materials contained in nearly 4 million pages of documents produced

to date. During these last weeks, the Parties have exchanged correspondence regarding document production and have met and conferred to collaboratively address the issues raised. The Parties have intentionally left the specific details concerning the scope of issues outside of this joint submission in an effort to be able to submit a motion jointly and, because the Presiding Officer's time is valuable, we endeavor to avoid raising issues that could be narrowed or resolved.

On September 24, 2025, counsel for the Parties participated in a meet and confer to address how these discovery issues can be resolved, while still digesting a large scale of documents and materials, and preparing for depositions of fact witnesses, along with expert work that is currently contemplated to occur concurrently. When addressing the circumstances, it was apparent that the Parties needed to seek assistance from the Presiding Officer in revisiting deadlines in light of the voluminous document record in this case and the work necessary to address the allegations raised in the pleadings.

C. Fact and Expert Witness Discovery Should Be Conducted Sequentially

As currently constituted, the Parties are supposed to be taking depositions of over 20 fact witnesses while simultaneously reviewing sizeable volumes of material produced at the end of the written discovery period. At the same time, counsel must digest that information and synthesize it for at least four experts in order for the experts to prepare their reports and rebuttals, and then take those experts' depositions, all between September 12 and November 14, 2025. The Parties have assessed the working days during this period, and it is impossible to undertake the careful work needed on this fact intensive record. In light of this, the Parties respectfully submit a schedule that accounts for the work needed.

The Parties respectfully propose that fact witness depositions be scheduled immediately following the end of the document review period requested above, should that relief be granted.

Immediately following the fact witness depositions, expert discovery would commence and run for approximately 60 days. This amendment to the schedule will allow the Parties to efficiently schedule and take the fact witness depositions so as to permit the Parties' experts to review documents produced by both Parties, documents and information marked as deposition exhibits, and deposition transcripts from the fact witnesses, prepare and exchange initial reports and rebuttal reports, and participate in expert depositions.

D. Proposed Amended Scheduling Order

The Parties have endeavored to present a more fulsome review of the phases of work based on the substantial documents and data exchanged between them. The Parties believe that, given the magnitude of the claims and evidence in this case, separating the discovery phases as outlined above is reasonable, and a more appropriate way to advance this matter without prejudicing either Party's ability to meaningfully review the evidence, prepare for and take fact witness depositions, and present the experts with relevant evidence to allow them to prepare and defend their materials. Based on the good cause shown above, the Parties respectfully request the extension and resetting of the deadlines as follows:

Event	Current Deadline	Requested Deadline
Document Production Assessment Period/ Addressing of Party Discovery Challenges/Preparation for Fact Witnesses	September 12, 2025	November 14, 2025
Fact Discovery Phase Begins		November 14, 2025
Complete Fact Depositions/Begin Expert Phase		January 30, 2026
Expert Reports Due		January 30, 2026

Rebuttal Expert Reports Due/Expert Depositions Begin		March 2, 2026
Expert Depositions Begin		March 2, 2026
Complete Expert Discovery		March 23, 2026
Meeting to discuss Joint Prehearing Statement must be held by this date; hearing exhibits must be exchanged	December 3, 2025	March 30, 2026
Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due	December 31, 2025	May 15, 2026
Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 AM	January 6, 2025	[To be determined with the availability of the Presiding Officer]

Based on the good cause shown above, the Parties pray for an Order extending the current discovery deadline and resetting the deadlines in this case as outlined above.

Respectfully Submitted,

Dated: September 29, 2025

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